



File No.: EXP202205824

RESOLUTION ON THE EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection (hereinafter AEPD) became aware through several complaint letters submitted on May 20, 2022, and May 24, 2022, including one from the GOVERNMENT DELEGATION FOR GENDER VIOLENCE and from FACUA - CONSUMERS AND USERS ASSOCIATION IN ACTION (hereinafter FACUA), of certain facts that could violate data protection legislation.

It is indicated that A.A.A. (hereinafter (...)) had published on their Twitter profile, between May 19 and May 20, 2022, several tweets disseminating a video featuring two minors allegedly related to the case known as (...). In the images, beyond whether the image of the girls is recognizable (it is the recording of a live broadcast that the minors performed on a social network - Instagram, apparently, where they use filters, but they are visible), their voices are clearly recognizable, they have not been manipulated, and the Instagram user identification of one of the alleged victims also appears.

The following links are provided:

- ***URL.1
- ***URL.2
- ***URL.3
- ***URL.4
- ***URL.5
- ***URL.6
- ***URL.7

Documentation provided:

- Screenshot of the tweets

SECOND: On May 26, 2022, the AEPD addressed (...) with an urgent precautionary measure for the removal of content, where it was requested: to proceed to remove, as soon as possible, the aforementioned content from the web addresses from which it is accessible, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users, as well as the communication to this Agency of compliance with this measure.

THIRD: On May 26, 2022, a new complaint was submitted by FACUA, expanded by a letter submitted on the 30th of the same month and year, indicating that (...) has proceeded to delete the publications that included the videos featuring the minors, but that they have uploaded screenshots of the deleted tweets, where different frames of the video can be clearly seen showing both the face of the witness and one of the alleged victims, as well as the user account of the latter.

The following links are provided:

- ***URL.8
- ***URL.9

FOURTH: On May 30, 2022, the AEPD addressed an urgent precautionary measure for the removal of content to (...), where it was required to remove, as soon as possible, the aforementioned content from the web addresses from which it is accessible, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users, as well as the communication to this Agency of compliance with this measure.

FIFTH: On June 6, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

SIXTH: On June 13, 2022, (...) filed a motion for reconsideration against the two previous orders for the removal of content, which was dismissed by the AEPD Resolution of July 12, 2022.

SEVENTH: On July 18, 2022, (...) submitted a letter informing the AEPD of the actions it has taken to comply with the precautionary measures imposed.

EIGHTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

- Date on which the reported facts took place: May 19 and 20, 2022
- The reported facts are accredited, confirming the existence of the video and the tweets on the TWITTER profile and the TELEGRAM channel of (...).

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- In the video disseminated in several tweets, two of the minors allegedly related to the case known as (...). The images refer to a live recording that the minors made on a social network -Instagram, apparently-, in which, despite using filters, the minors are visible and their voices are clearly recognizable, as they have not been manipulated, and the identification of the users of the profiles also appears. This video appears on the Twitter profile of (...) along with the following message "...(...)." - Urgent precautionary measures for the removal of the content were sent to (...) for the deletion of the tweets and the post on the TELEGRAM channel, and as of July 19, 2022, it is confirmed that the contents have been deleted.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Previous investigative actions

Article 67 of the LOPDGDD in force at the time of initiating the preliminary investigative actions regarding the reported facts established a maximum duration of 12 months for them.

This provision determined the following regarding the preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union,

in accordance with Article 64.3 of this organic law.”

III

Expiration of actions

In relation to the preliminary actions, the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions.”

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, after more than twelve months counted from the date of their initiation, no agreement to initiate sanctioning proceedings has been issued and notified.

In the present case, the computation of the twelve-month maximum duration of the preliminary actions began on June 6, 2022, and they are currently still pending completion, so they must be declared expired.

Therefore, in accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

SECOND: TO NOTIFY this Resolution to A.A.A.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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